



CHAPTER xcii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Edinburgh Royal Maternity and Simpson Memorial Hospital. A.D. 1932.
—
[15th November 1932.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.
16 & 17 Geo. 5. c. 1

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Edinburgh Royal Maternity and Simpson Memorial Hospital Order Confirmation Act 1932. Short title.

[Ch. xcii.] *Edinburgh Royal* [22 & 23 GEO. 5.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

A.D. 1932.

SCHEDULE.

EDINBURGH ROYAL MATERNITY AND SIMPSON
MEMORIAL HOSPITAL.

*Provisional Order to transfer the Edinburgh Royal Maternity
and Simpson Memorial Hospital to the Royal Infirmary
of Edinburgh and for other purposes.*

WHEREAS a hospital was established in the city of Edinburgh in the year seventeen hundred and ninety-three under the name of the Edinburgh General Lying-in Hospital which hospital was in the year eighteen hundred and seventy-nine re-named the Edinburgh Royal Maternity and Simpson Memorial Hospital (hereinafter referred to as "the hospital") for the reception and treatment of maternity cases and purposes associated therewith :

And whereas by the constitution and laws of the hospital the property and funds of the hospital are vested in trustees (hereinafter referred to as "the trustees") elected by the contributors to the hospital :

And whereas the control of the property of the hospital and the regulation of its affairs and internal management is vested in directors (hereinafter referred to as "the directors") set up under the constitution and laws of the hospital :

And whereas within recent years the accommodation and resources of the hospital have been found insufficient to meet the growing demands of the public upon its services and the present situation of the hospital in Lauriston Place Edinburgh is such that an extension thereof on the present site is not practicable :

And whereas the Royal Infirmary of Edinburgh (hereinafter referred to as "the Royal Infirmary") was incorporated by Royal Charter granted by His late Majesty King George the Second and dated the twenty-fifth day of August one thousand seven hundred and thirty-six :

[22 & 23 GEO. 5.] *Edinburgh Royal* [Ch. xcii.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

And whereas the Royal Infirmary which does not at present treat the class of cases dealt with in the hospital has acquired an area of ground adjacent to the site of its present buildings and has agreed with the directors that the Royal Infirmary will so soon as practicable erect on the ground so acquired and thereafter maintain a wing or block of new buildings for the reception and treatment of patients of the class or nature at present received in the hospital the accommodation so to be provided to be not less than one hundred and twenty beds : A.D. 1932.
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And whereas the directors and the Royal Infirmary have also agreed (subject to the necessary powers being conferred on the trustees and directors) that the trustees and directors will transfer and the Royal Infirmary will take the hospital and its whole property and assets heritable and moveable as at the date of transfer and the Royal Infirmary has also agreed as from the said date to receive and become responsible for the accommodation and treatment of the patients then under the care of the hospital to carry on the ante-natal and out-patient departments of the hospital to take over the whole obligations work and services of the hospital and to become responsible for all the debts and liabilities thereof all as hereinafter in this Order provided :

And whereas it is expedient that as from the date upon which the hospital and others are transferred to the Royal Infirmary the hospital and the trustees and directors thereof should be dissolved :

And whereas it is expedient that the Royal Infirmary should be empowered to make charges as hereinafter in this Order provided :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas this Order was approved at a meeting of the managers of the Royal Infirmary held on the twenty-first day of March one thousand nine hundred and thirty-two :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 .

[Ch. xcii.]

Edinburgh Royal

[22 & 23 GEO. 5.]

Maternity and Simpson Memorial Hospital

Order Confirmation Act, 1932.

A.D. 1932.

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Short title
and com-
mencement.

1.—(1) This Order may be cited for all purposes as the Edinburgh Royal Maternity and Simpson Memorial Hospital Order 1932.

(2) This Order shall (except as otherwise hereinafter provided) commence and have effect on and from the date of the passing of the Act confirming this Order.

Interpretation.

2. The following words and expressions in this Order have the respective meanings hereby assigned to them unless there be something in the subject or context inconsistent with or repugnant to such meaning (that is to say) :—

“The hospital” means the Edinburgh Royal Maternity and Simpson Memorial Hospital;

“The directors” and “the trustees” mean respectively the directors and trustees of the hospital;

“The Royal Infirmary” means the Royal Infirmary of Edinburgh incorporated by Royal Charter;

“The new buildings” means the wing or block of new buildings to be erected by the Royal Infirmary in pursuance of this Order;

“ The date of transfer ” means the fifteenth day of May one thousand nine hundred and thirty-four or such earlier or later date as may be fixed by the Secretary of State by virtue of the section of this Order of which the marginal note is “ As to date of transfer.”

Obligation
upon Royal
Infirmary to
erect &c.
buildings.

3. The Royal Infirmary as soon as practicable after the commencement of this Order shall in the exercise of the powers already enjoyed by it erect upon ground already acquired by it adjacent to its present buildings and equip and thereafter maintain a wing or block of new buildings for the reception and treatment of maternity patients of the class at present received by the hospital the accommodation to be so provided to be not less than one hundred and twenty beds.

[22 & 23 GEO. 5.] *Edinburgh Royal* [Ch. xcii.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

4.—(1) In the event of the new buildings being erected and equipped for the reception and treatment of patients in terms of this Order before the fifteenth day of May one thousand nine hundred and thirty-four the Secretary of State may upon the joint application of the directors and the Royal Infirmary fix such earlier date as he thinks fit as the date of transfer and such earlier date shall be “the date of transfer” under this Order in lieu of the fifteenth day of May one thousand nine hundred and thirty-four.

A.D. 1932.

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As to date
of transfer.

(2) In the event of the new buildings not being erected and equipped for the reception and treatment of patients in terms of this Order by the fifteenth day of May one thousand nine hundred and thirty-four the Secretary of State may upon the joint application of the directors and the Royal Infirmary fix such later date as he thinks fit as the date of transfer and such later date shall be “the date of transfer” under this Order in lieu of the fifteenth day of May one thousand nine hundred and thirty-four.

5.—(1) All property heritable and moveable real and personal of whatsoever kind or nature including all interests and rights in to and out of property heritable and moveable real and personal and all contracts debts obligations and rights of action which immediately before the date of transfer were held by or vested in the trustees or directors or any other person or persons for behoof of the hospital shall pass to and be vested in the Royal Infirmary and all persons holding the title to or legal estate in any such property debts and obligations shall be bound to execute at the request of the Royal Infirmary any such transfers conveyances deeds and writings as the Royal Infirmary may desire them to execute with reference thereto.

Vesting of
property in
Royal
Infirmary.

(2) Without prejudice to the provisions in the immediately preceding subsection contained all property heritable and moveable real and personal comprised in any assignation disposition and assignation disposition feu contract contract of ground annual bond mortgage conveyance or other deed or writing which at any time before the date of transfer was taken and held in the name of the hospital or of any trustees directors or

[Ch. xcii.] *Edinburgh Royal* [22 & 23 GEO. 5.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

A.D. 1932. office bearers thereof or of any other person or persons for behoof of the hospital shall on the date of transfer pass to and be vested in and belong to the Royal Infirmary without the necessity of any disposition assignation transfer conveyance notarial instrument notice of title or any other continuing or connecting title or separate investiture or infeftment other than this Order Provided that this subsection shall not apply to any shares stocks annuities or property which are only transferable in books kept by a company or other body or in manner prescribed by or under Act of Parliament all which excepted property is intended to be and shall be by the appropriate means vested in the Royal Infirmary.

(3) Any property which by any deed will or other instrument was held by the hospital or by the trustees directors or office bearers thereof upon or subject to any trust or trusts shall be held by the Royal Infirmary upon or subject to the like trust or trusts.

Order to be
deemed a
general dis-
position.

6. Without prejudice to anything hereinbefore in this Order contained it is hereby provided that for the purpose of enabling the Royal Infirmary to complete a title if thought fit to any part of the lands buildings and other heritable property vested in them by virtue of this Order by expeding a notarial instrument or notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such lands buildings and other property in favour of the Royal Infirmary.

Legacies &c.
not to lapse.

7. No legacy or bequest or gift or trust in any will or testamentary disposition or any deed or other instrument (whether such will testamentary disposition deed or other instrument bears date before or after the date of transfer) shall lapse or fail by reason of the confirmation of this Order but any such legacy bequest gift or trust which but for this Order would have accrued or enured for the benefit of the hospital shall accrue and enure to the Royal Infirmary for the benefit of the new buildings and the services carried on therein or therefrom and any executor trustee or other person in a fiduciary capacity paying any such bequest or legacy or gift or trust moneys to the Royal Infirmary in pursuance of this section shall be and is hereby relieved from all liability accordingly.

[22 & 23 GEO. 5.] *Edinburgh Royal* [Ch. xcii.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

8. On and from the date of transfer the Royal Infirmary shall subject to and in accordance with the provisions of this Order—

A.D. 1932.

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 As to carrying on work of hospital.

- (a) receive and become responsible for the accommodation and treatment of the patients under the care of the hospital either intern or extern the hospital at the date of transfer;
- (b) take over make provision for and continue to carry on the work being done at the date of transfer in the ante-natal and out-patient departments of the hospital including the instruction of students in midwifery and the diseases of infants and the education and proper training of women in the special duties of midwives and of obstetric nurses; and
- (c) take over and become responsible for the whole obligations work and services which at the date of transfer are being carried on at the hospital.

9. Notwithstanding anything contained in the Royal Charter granted by His late Majesty King George the Second dated the twenty-fifth day of August one thousand seven hundred and thirty-six whereby the Royal Infirmary was incorporated or in the Edinburgh Royal Infirmary Act 1870 it shall be competent to the managers of the Royal Infirmary and they are hereby empowered as from the date of transfer to make charges in respect of patients in or attending the new buildings or receiving attention therefrom the same as or as nearly as may be the same as those made by the directors prior to the date of transfer in respect of patients in or attending the hospital or receiving attention therefrom.

As to charges.

10. On and from the date of transfer the hospital as constituted by the constitution and laws dated the eleventh day of April one thousand nine hundred and five shall be dissolved and the trustees directors and office bearers thereof shall cease to hold office and they shall be and are hereby released and discharged from and indemnified against all claims demands liabilities and obligations arising out of or attached to their respective offices.

Dissolution of hospital and discharge of trustees &c.

[Ch. xcii.] *Edinburgh Royal* [22 & 23 GEO. 5.]
Maternity and Simpson Memorial Hospital
Order Confirmation Act, 1932.

A.D. 1932.

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Name
"Simpson"
to be
continued.

11. The new buildings shall be designated "The Simpson Memorial Maternity Pavilion" (or such other name as the directors and the managers of the Royal Infirmary may prior to the date of transfer agree upon) and the name "Simpson" shall continue in all time coming to be associated with the new buildings or with any building or buildings which shall in time to come replace the new buildings.

Costs of
Order.

12. All costs charges and expenses of and incident to or connected in any way with the preparing applying for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the hospital.

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